PARTNERS *of the* AMERICAS

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FLEX WORK ARRANGEMENT POLICY

Effective July 1st, 2023

Table of Contents

1. Scope 3
2. Objective 3
3. Goals 3
4. Responsibilities 3
5. Flexible Work Arrangements Policy 5
6. Types of Flexible Work Arrangements Available 5
   6.1 Flex Time Definition 5
   6.2 Compressed Work Week Definition 6
   6.3 Reduced Work Schedule 6
      6.3.1 Maternity/Paternity Leave – Reduced Work Schedule 7
      6.3.2 Phased Retirement – Reduced Work Schedule 7
7. Guidelines and Conditions for Flexible Work Arrangements 7
   7.1 8
   Enrollment in a Flexible Work Arrangement 8
   7.2 Review of Flexible Work Arrangement Requests 8
   7.3 Approval/Denial of Flexible Work Arrangement Request 9
      7.3.1 Flexible Work Arrangement Trial Period 9
8. Review of Flexible Work Arrangements 10
9. Termination of a Flexible Work Arrangement 10
10. Flexible Work Arrangement Compliance 10
11. Flexible Work Arrangement Complaints 11

1. Scope

The following flexible work arrangement (FWA) policy applies to all Partners of the Americas (Partners) staff working both part-time and full-time currently working in our home office (HO), and who have been employed for more than 90 days (after completion of the employment probationary period).

2. Objective

The objective of this policy is to outline the options available to staff for flexible working arrangements. Partners recognizes that a better work-life balance can improve employee motivation, performance and productivity, and reduce stress. A flexible work arrangement attracts and retains Partners' top talent, as it gives employees greater flexibility and control over when and where they work within or outside of the standard workday. Therefore, Partners wants to support its employees to achieve a better balance between work and their other priorities, such as caring responsibilities, leisure activities, further learning and other interests. Partners is committed to providing flexible working arrangements, as long as the needs and objectives of the organization can be met.

3. Goals

The primary goals of Partners' flexible work arrangement is outlined as follows:

- Help attract and retain top talent
- Foster an environment of trust by rewarding productivity
- Improve employee morale and overall job satisfaction
- Reduce absenteeism while increasing staff efficiency
- Become more productive
- Reduce distractions
- Avoid peak commute times and/or reduce commute times
- Reduce work life conflicts and stress

4. Responsibilities

Several individuals are responsible for ensuring the appropriate use of the Flexible Work Arrangement Policy. Those responsible and their duties are defined below.

- ***Staff members:*** are responsible for requesting and participating in flexible work arrangement according to the procedures outlined in this policy including:
    - Identifying personal needs and possible solutions, and being realistic about what is possible
    - Ensuring the physical security of Partners information and assets at all times when outside of Partners premises

- Taking responsibility for delivering their own workload as agreed with their supervisor
- Reporting any workplace incidents, injuries or illnesses that occur while undertaking flexible work arrangements
- Ensuring that any home based working arrangement complies with all Partners policies and procedures, including the necessary resources and equipment
- Reviewing and modifying arrangements as their personal circumstances or operational requirements change from time to time.

- ***Supervisors:*** are responsible for:
  - Recognizing the need for and thinking creatively about flexible work arrangements
  - Managing differences in work styles and practices e.g. managing employees on a home based work arrangement, etc.
  - Tracking the career progression of employees who are on flexible work arrangements to ensure they have access to all training and other benefits and to ensure that they suffer no disadvantage in opportunities for promotion or career development
  - Evaluating the outcomes of flexible work arrangements and looking for improvements.

- ***Senior Management:*** under this policy is responsible for:
  - Determining when flexible work arrangements are appropriate
  - Consulting with supervisors and staff members who request flexible work arrangements
  - Recommending for approval, monitoring and discontinuing flex arrangements as outlined in this policy.

- ***Human Resources (HR):*** under this policy is responsible for:
  - Consulting with individuals and management requesting information about flexible work arrangements
  - Reviewing the program continuously to ensure fair and consistent application
  - Designing and implementation of the flexible work arrangement policy in accordance with Partners policies and applicable laws and regulations
  - Providing continuous communication and education on the policy
  - Gathering feedback
  - Refining the policy as necessary to meet the needs of Partners.

- ***President & CEO:*** under this policy is responsible for:
  - Approving, monitoring and discontinuing flex arrangements as outlined in this policy.

5. Flexible Work Arrangements Policy

Partners will strive to work with employees to find an agreeable arrangement for their flexible work arrangement. While not all positions will be amenable to flex work arrangements, consideration of flexible work schedules will be reviewed on a case-by-case basis taking into account the program and department's needs and the employee's ability to maintain a high level of service to Partners. A successful flexible work arrangement will enhance the quantity, quality, and productivity of the employee's level of service. A flexible work arrangement must be authorized in advance by an authorized official, as outlined in the policy below. Furthermore, Partners reserves the right to disallow a flexible work arrangement, if the needs of the organization cannot be met.

6. Types of Flexible Work Arrangements Available

Flexible work arrangement or "FWA" are work hours or work weeks that vary from the standard schedule of Partners in which the staff member works. FWA options include flex time, compressed work weeks, and reduced work schedules.

The standard workweek of Partners is seven (7) consecutive days, beginning on Monday at 12:00 am and ending on Sunday at 11:59 pm. The normal work schedule for all full-time employees is an eight (8) hour day, five (5) consecutive days a week beginning on Monday. Normal business hours for regular, full-time personnel are 9:00 am - 5:30 pm, Monday through Friday, although responsibilities may require more than this period. Time taken for lunch is one hour. All employees must be available during Partners' core work hours of 10:00am - 3:00pm EDT. The following flexible work arrangements are available to Partners staff as defined below.

6.1 Flex Time Definition

Flex Time is an agreed-upon starting and departure times that differ from the standard schedule of Partners without reducing the number of hours worked per day. Schedules may be fixed for a period or can vary from day to day.

To vary the above Partners standard work week, employee may create their own proposed Flex Time schedule, or may utilize one of the options below.

- ***Core hours with variable schedule:*** Staff may arrive and leave at different times each day and but must be present during the core hours of 10:00 am to 3:00 pm EDT unless otherwise approved and included in the Flex Work Arrangement Agreement.
- ***Variable day:*** Staff may work a different number of hours each day as long as they average a specified number per day or per week. This can be used on a regular basis or occasionally for a school function, doctor's appointment, etc.; it can also help address issues with working across different time zones (e.g. if staff work until 1:00 a.m., they could come in later the following day).

- ***Summer flex time:*** Work hours differ during the summer (e.g. start work at 7:30 am instead of 9:00 am and finish at 4pm, instead of 5:30pm, assuming ½ hour lunch break). Available from May 1st to September 30th.
- ***Day-of-the-week flex:*** Work hours are flexed on a particular day of the week.
- ***Mixed Approach:*** Leave office early and work from home at night (still full time). Still must be available during core hours.

6.2 Compressed Work Week Definition

A compressed work week is when regularly scheduled hours are worked and fixed over fewer than five days a week. The employee would work longer hours in exchange for a reduction in the number of working days in the pay period cycle. For example, if an employee works a standard 40 hour work week in four days instead of the usual five days, this will result in one day off (i.e., generally referred to as a "compressed day") in that pay period cycle.

The earned compressed time is taken off during the pay period cycle in which it is worked. A compressed work week is a fixed arrangement and does not vary from one pay period to the next. As a compressed work week arrangement requires working the standard number of hours in a pay period cycle (i.e., weekly or bi-weekly), earned compressed time off cannot be accumulated, banked, or used in a future pay period cycle.

If for any reason the employees on compressed work week is permitted to go home because of inclement weather, early dismissal, or for any other reason, on a day when the employee is scheduled to work extra time as part of a compressed work week, the employee is required to make up the additional time beyond the standard work day which would have been worked on the day of the closure/early dismissal. Partners and the employee will consult on the adjustments required to the employee's compressed work week schedule to ensure the total number of required hours are actually worked during the pay period cycle.

If a holiday falls within a compressed work week, those 8 hours should go to reduce the necessary hours the employee works that week. (e.g. if any employee regularly works 40 hours a week in 4 days and there is a holiday, they will only need to work 32 hours that particular week to cover their commitment).

In addition to the general guidelines above, for compressed workweek schedules, supervisors and employees should consult with HR for changes in recording time on timesheets and impact on leave.

6.3 Reduced Work Schedule

A staff member on a reduced work schedule works less than full time but no less than 50% of the regular work week schedule. Reduced work schedule options include:

- Working any percentage between 50% and 100% of time
- One or more days off every week

- Present in the office every day, but leave early or come in late

Note: Many reduced work schedules will result in a change in compensation, which is based on the new level of effort (LOE) (e.g. If an employee receives $50K annual salary at 100% LOE, and under their new reduced work schedule they only work 60% of the time, their new annual salary would be $30K, given the new lower LOE).

6.3.1 Maternity/Paternity Leave – Reduced Work Schedule

Employees on maternity/paternity leave may also utilize a reduced work schedule to extend their leave for a period of no longer than 16 weeks. For example, an employee can continue to be paid at 100% LOE, and the employee would utilize a combination of leave (maternity, paternity, annual leave, etc.) and telework at a predetermined LOE. The employee would be 50% LOE working and 50% on leave, resulting in full 100% LOE compensation.

6.3.2 Phased Retirement – Reduced Work Schedule

Employees may also choose to participate in phased retirement, which is the transition from full-time work to retirement by working reduced hours.

7. Guidelines and Conditions for Flexible Work Arrangements

The availability of eligible employees to have a flexible work arrangement is a privilege and not a right or entitlement. As such, whether to grant or deny the privilege is within the sole discretion of President & CEO with due consideration, taking into account factors including but not limited to, the nature of each employee's job, the needs of the business, and operational requirements. The conditions below describe the mutual expectations regarding the arrangement between Partners and the employee. Its terms do not constitute, nor should they be construed as, a contract of employment, and its terms do not vary the at-will employment status between Partners and the employee. Partners reserves the rights to change, amend, or revoke any company benefit, including flexible work arrangements, at any time, with or without cause and with or without notice. Under an approved flexible work arrangement:

- The employee is still subject to Partners of the Americas policies and procedures.
- The employee's flexible work arrangement and any subsequent changes must be reviewed and approved in advance by the employee's supervisor, Unit Leader, and HR, with final approval by the President & CEO.
- The employee agrees to adjust his or her schedule to attend meetings and respond to changing business needs, as required by Partners.
- The employee agrees to adjust his/her schedule to attend planned office events or important meeting. If a scheduled event or meeting falls on a day off due to a flex schedule, the individual must attend or provide a written justification for failing to comply with this policy. Justification must be sent prior to the event or meeting to the employee's Supervisor, HR and the President & CEO.

- The employee agrees that in the event that a last-minute meeting occurs at the same time they are on flex, the individual must follow-up with the team to collect information and supportive documentation shared during the meeting.
- The employee's goals and objectives are established every year as part of the Employee Performance Review process. All assigned work will be completed in accordance with this plan and established policies, procedures, and processes.
- The employee agrees to keep his or her supervisor informed of his or her progress on assignments, as agreed upon by the employee and their supervisor.
- The employee also agrees to keep his or her supervisor informed of any problems that he or she might experience with an FWA.
- Periodic progress reviews -The employee is subject to the same Employee Performance Review procedures and standards as employees who do not have a flexible work arrangement. However, there may be agreed upon periodic progress reviews to evaluate the arrangement.

A decline in performance or failure to comply with the provisions of the flexible work arrangement agreement may be grounds for progressive discipline, up to and including dismissal, and/or discontinuing the flexible work arrangement.

7.1 Enrollment in a Flexible Work Arrangement

To participate in the Flexible Work Arrangement benefit that Partners offers, the employee will need to have been employed for more than 90 days (after completion of the employment probationary period). The employee will need to determine with the help of their manager which type of flexible work arrangement will work best. Remember that a flexible work arrangement is a privilege, not an entitlement, and it requires flexibility on your part to meet the needs of Partners.

Once a flexible work arrangement has been discussed with the employee and their supervisor, they will need to complete a Flexible Work Arrangement Request Form ("FWA Request"). The FWA Request will need to be signed by the employee, employee's supervisor, the Unit Leader, HR and the President & CEO. Depending on the nature of the request, the requesting employee may need to meet with HR to fully present the request and/or situation.

7.2 Review of Flexible Work Arrangement Requests

When a flexible working arrangement is proposed, Partners will need to take into account a number of criteria including (but not limited to) the following:

- Potential benefits
- Costs associated with the proposed arrangement
- Effect of the proposed arrangement on other staff
- Existing structure of the department
- Availability of staff resources
- Details of the tasks specific to the role

- Workload of the role
- Whether it is a request for a reasonable adjustment related to a disability
- An employee's performance prior to making the request
- An employee's track record of working autonomously
- Health and safety issues
- Ability of job to be performed through the proposed flexible work arrangement
- Potential adjustments considered in the proposal or in the job requirements to make this proposal acceptable
- An employee's track record of consistently delivering good quality output and strong time management skills
- Employee's demonstration of initiative and self-motivation
- Amount of direct supervision required
- Required changes in the supervision of the employee to implement the proposed flex work arrangement
- Temporary or permanent arrangement

Each request will be considered on a case-by-case basis. Agreeing to one request will not set a precedent or create the right for another employee to be granted a similar change to their working pattern.

7.3 Approval/Denial of Flexible Work Arrangement Request

The employee will be informed in writing of Partners' decision as soon as is reasonably practicable, but no later than 30 days after the request has been submitted. A variation to a work pattern may be made on a permanent or time limited basis. The request may be granted in full, in part or refused. Partners may choose to propose a modified version of the request, the request may be granted on a temporary basis, or the employee may be asked to try the flexible working arrangement for a trial period.

If a flexible working arrangement is a permanent change, as in reduced work schedule LOE, etc. the change will be made on a transition letter. The letter will indicate the new working terms and conditions, including any resulting changes in compensation, as applicable.

7.3.1 Flexible Work Arrangement Trial Period

Where there is some uncertainty about whether the flexible working arrangement is practicable for an employee and/or Partners, a trial period may be agreed upon. A typical trial period will not be shorter than 1 month and no longer than 3 months. If a trial period is arranged, Partners will allow sufficient time for an employee and their supervisor to implement and become used to the new working practices before taking any decisions on the viability of a new arrangement.

The employee will be informed in writing of the start and end dates of the trial period (although Partners may reduce or lengthen the trial period where necessary with the agreement of the employee).

At the end of the agreed upon trial period, the employee's supervisor, Unit Leader, and HR will meet to review the outcomes of the trial. Regardless of the decision, the employee will receive a notice indicating the results. Partners reserves the right, at the end of the agreed-upon trial period, to require the employee to revert to their previous working arrangement.

8. Review of Flexible Work Arrangements

Once flexible working arrangements are adopted, supervisors must review these work arrangements regularly on a continuous basis to ensure:

- All deliverables are being met
- The quality, quantity and timeliness of the work performed is to the standard required
- The impact on other members of the work team is not detrimental to the overall performance of the team and Partners
- The operational requirements of the area are being met
- The employee is complying with the terms of the agreement
- The flexible working arrangement is continuing to meet the needs of the employee.
- Work health and safety requirements continue to be met
- Partners policies and procedures are being adhered to

Annually, during the employee annual performance review process, any employee flexible work arrangement must be reviewed using the Flex Work Performance Review Form. Upon review, if the arrangement is considered beneficial, it may be extended for another year in writing. If the arrangement is deemed unnecessary/not beneficial, the arrangement will be terminated for the following year.

9. Termination of a Flexible Work Arrangement

Flexible work arrangements may be modified or terminated by Partners or the employee at any time for any reason and with or without cause and with or without notice, or as needed to ensure that the arrangement does not negatively impact the employee's or the unit's work quantity, quality, or productivity.

10. Flexible Work Arrangement Compliance

All flexible work arrangements must conform to the overtime, record keeping, meal break and other provisions of the Fair Labor Standards Act and other relevant laws. Lunches and/or scheduled rest period are not eliminated when staff works a flexible work arrangement.

11.Flexible Work Arrangement Complaints

Partners strongly opposes any form of victimization of individuals who work, or request to work under flexible working arrangements. If an employee feels that they have been treated unfairly or are dissatisfied with part of the flexible work arrangement process, they should raise their concerns with HR.